PURCHASE AND SALE AGREEMENT

Indigo Apartments | Pittsburgh, PA

Seller	Ellison Crest Realty
Buyer	Whitfield Park Capital
Property	Indigo Apartments, 2656 Highland Parkway, Pittsburgh, PA 86934
Purchase Price	$31,360,000
Effective Date	December 10, 2020

1. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Indigo Apartments, located at 2656 Highland Parkway, Pittsburgh, PA 86934, consisting of 255 apartment homes, together with all improvements, fixtures and appurtenances. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

2. Purchase Price. The purchase price for the Property shall be $31,360,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

3. Earnest Money Deposit. Within 29 business days after the Effective Date, Buyer shall deposit $627,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

4. Due Diligence Period. Buyer shall have 39 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA.

5. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

6. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

7. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA.

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8. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

9. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

10. Closing. Closing shall occur on or before January 24, 2021, through escrow with Evergreen Title Services. Possession shall be delivered to Buyer at Closing. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

11. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

12. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Indigo Apartments, located at 2656 Highland Parkway, Pittsburgh, PA 86934, consisting of 255 apartment homes, together with all improvements, fixtures and appurtenances. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

13. Purchase Price. The purchase price for the Property shall be $31,360,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA.

14. Earnest Money Deposit. Within 4 business days after the Effective Date, Buyer shall deposit $627,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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15. Due Diligence Period. Buyer shall have 48 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

16. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

17. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

18. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

19. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

20. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

21. Closing. Closing shall occur on or before January 24, 2021, through escrow with Evergreen Title Services. Possession shall be delivered to Buyer at Closing. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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22. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

23. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Indigo Apartments, located at 2656 Highland Parkway, Pittsburgh, PA 86934, consisting of 255 apartment homes, together with all improvements, fixtures and appurtenances. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

24. Purchase Price. The purchase price for the Property shall be $31,360,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

25. Earnest Money Deposit. Within 42 business days after the Effective Date, Buyer shall deposit $627,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

26. Due Diligence Period. Buyer shall have 6 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

27. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

28. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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29. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

30. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

31. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

32. Closing. Closing shall occur on or before January 24, 2021, through escrow with Evergreen Title Services. Possession shall be delivered to Buyer at Closing. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

33. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

34. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Indigo Apartments, located at 2656 Highland Parkway, Pittsburgh, PA 86934, consisting of 255 apartment homes, together with all improvements, fixtures and appurtenances. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA.

35. Purchase Price. The purchase price for the Property shall be $31,360,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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36. Earnest Money Deposit. Within 38 business days after the Effective Date, Buyer shall deposit $627,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

37. Due Diligence Period. Buyer shall have 6 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

38. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

39. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

40. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

41. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA.

42. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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43. Closing. Closing shall occur on or before January 24, 2021, through escrow with Evergreen Title Services. Possession shall be delivered to Buyer at Closing. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

44. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA.

45. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Indigo Apartments, located at 2656 Highland Parkway, Pittsburgh, PA 86934, consisting of 255 apartment homes, together with all improvements, fixtures and appurtenances. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

46. Purchase Price. The purchase price for the Property shall be $31,360,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

47. Earnest Money Deposit. Within 38 business days after the Effective Date, Buyer shall deposit $627,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

48. Due Diligence Period. Buyer shall have 26 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of PA. Time is of the essence with respect to each and every provision of this instrument.

49. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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